

23STCV10218 23STCV10218

County: los-angeles

Division: Civil Law and Motion

Department: 408

Hearing date: 2026-08-13

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C408%2C08%2F13%2F2026

Source SHA-256: e424b6f247567b9e7af8134834d0b610fc5b35afdc40e8e68f6d75a1e12fbe5

Case Number: 23STCV10218 Hearing Date: August 13, 2026 Dept: 408

Defendant/Cross-Complainant

Dawn M. Petschauer's Motion for Summary Adjudication is GRANTED.

I.

BACKGROUND

On May 8, 2023, Plaintiffs William Xiaoyu Guo

("Xiaoyu"), Qichen Guo ("Guo"), and Xiaoping Liu ("Liu", collectively "Plaintiffs")

filed a complaint against Defendant Dawn M. Petschauer ("Petschauer") alleging causes of action for:

1.

Declaratory

Relief;

2.

Trespass;

3.

Nuisance;

4.

Invasion of

Privacy;

5.

Injunctive

Relief: Temporary Restraining Order, Preliminary Injunction, and Permanent

Injunction; and

6.

Quiet Title.

On

June 12, 2023, Plaintiffs filed a First Amended Complaint ("FAC").

On July 17, 2023, Petschauer filed an answer to Plaintiffs'

FAC and a cross-complaint against Xiaoyu, Guo, and Liu ("Cross-Defendants")

alleging causes of action for:

1. Interference

with Easement;

2. Prescriptive

Easement;

3. Quiet

Title;

4. Violation

of Good Neighbor Fence Law; and

5. Harassment.

On

September 14, 2023, Cross-Defendants filed an answer to Petschauer's

cross-complaint.

On May

21, 2026, Petschauer filed this Motion for Summary Adjudication as to

Plaintiffs' FAC. On July 27, 2026, Plaintiffs filed an opposition. On July 31,

2026, Petschauer filed a reply.

On June

30, 2026, the court granted Petschauer's Motion to Secure Fees and Costs from

Non-Resident Xiaoyu.

On

August 7, 2026, pursuant to Plaintiffs' request, Guo and Liu were dismissed with prejudice.[1]

II.

LEGAL

STANDARD

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. The motion may be made at any time after 60 days have elapsed since the general appearance in the action or proceeding of each party against whom the motion is directed or at any earlier time after the general appearance that the court, with or without notice and upon good cause shown, may direct." (Code Civ. Proc., § 437c, subd. (1)(a).)

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of fact and that he is entitled to judgment as a matter of law. That is because of the general principle that a party who seeks a court's action in his favor bears the burden of persuasion thereon. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 850 [citation omitted].)

"[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the reexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (Aguilar, supra, 25 Cal.4th at 850; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [applying the summary judgment standards in Aguilar to motions for summary adjudication].)

"On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict,

the factual issues must be resolved by trial.” (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839 [citation omitted].)

“The trial court may not weigh the evidence in the manner of a fact finder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility.” (Binder, supra, 75 Cal.App.4th at 840 [citations omitted]; see also Weiss v. People ex rel. Dep’t of Transp. (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

III.

DISCUSSION

Petschauer seeks summary adjudication as to the first cause of action for declaratory relief, third cause of action for nuisance, fourth cause of action for invasion of privacy, and fifth cause of action for injunctive relief alleged in Plaintiffs’ FAC, as follows:

[Issue

No. 1] Petschauer is entitled to a judgment of dismissal with respect to the first cause of action for declaratory relief as to Plaintiffs because there is no triable issue of material fact that the matter presented by the first cause of action is not appropriate for declaratory relief;

[Issue

No. 2] Petschauer is entitled to a judgment of dismissal with respect to the third cause of action for nuisance as to Xiaoyu because the undisputed facts establish Xiaoyu cannot prevail on this cause of action, as he has not suffered the injury or damages necessary to establish a cause of action for nuisance;

[Issue

No. 3] Petschauer is entitled to a judgment of dismissal with respect to the fourth cause of action for invasion of privacy as to Xiaoyu because the undisputed facts establish Xiaoyu cannot prevail on this cause of action, as he has not suffered the injury or damages necessary to establish a cause of action for invasion of privacy; and

[Issue

No. 4] Petschauer is entitled to a judgment of dismissal with respect to the fifth cause of action for injunctive relief as to Plaintiffs because “injunctive relief” is not a cause of action but a remedy. As a result, Plaintiffs fail to state sufficient facts to constitute a cause of action.

A.

Request
for Judicial Notice

Petschauer’s

Request for Judicial Notice is granted. “A court may properly take judicial notice of its own records. (Evid. Code, § 452, subd. (e).)” (Garcia v. Sterling (1985) 176 Cal.App.3d 17, 21.)

B.

Issue No. 1: Declaratory Relief (First
Cause of Action)

“Code of Civil Procedure section

1060, which governs actions for declaratory relief, provides: ‘Any person interested under a written instrument ..., or under a contract, or who desires a declaration of his or her rights or duties with respect to another ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action ... for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract.’” (California Public Records Research, Inc. v. County of Yolo (2016) 4 Cal.App.5th 150, 185.)

“Summary judgment is appropriate in a declaratory relief
action when only legal issues are presented for the court’s determination.

[Citation.] The defendant’s burden in a declaratory relief action ‘is to establish the plaintiff is not entitled to a declaration in its favor. It may do this by establishing (1) the sought-after declaration is legally incorrect; (2) undisputed facts do not support the premise for the sought-after declaration; or (3) the issue is otherwise not one that is appropriate for declaratory relief.’ [Citation.]” (California Public Records Research, Inc., supra, 4 Cal.App.5th at 185.)

“The court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances.” (Code Civ. Proc., § 1061.) When the “issues invoked in” a cause of action for declaratory relief “already [are] fully engaged by other causes of action,” “declaratory relief [is] unnecessary and superfluous.” (Hood v. Superior Court, (1995) 33 Cal.App.4th 319, 324.)

The FAC alleges that Xiaoyu is the owner of the real property located at 182 S. Craig Ave., Pasadena, CA 91107 (“Subject Property”); Guo and Liu reside in the Subject Property; Petschauer is the owner of an adjoining property located at 172 S. Craig Ave., Pasadena, CA 91107 (“Adjoining Property”); and the driveways for both properties are directly next to each other. (FAC, ¶¶ 5-8.) The Subject Property has a garage structure with the westerly wall located 120 feet from the front property line of the Adjoining Property; the southernly wall is on the property line between the properties; and the easternly wall located 37 feet from the rear property line of the Adjoining Property. (Id., ¶¶ 9-12.) The properties also share a fence running between the southeastern corner of the garage to the rear property line of the Adjoining Property. (Id., ¶ 13.) On April 17, 1943, the then owners of the properties entered into a recorded “Community Driveway Agreement” creating a four-foot wide easement for use as a driveway on each property. (Id., ¶¶ 14, 16.)

The FAC further alleges that, in July 2021, Petschauer informed Plaintiffs that she planned to build an ADU in her backyard to rent to tenants and intended to have her future tenants walk along the westerly front wall of the garage to the easterly rear property line of the properties (“Disputed Area”) without approval from Plaintiffs. (Id., ¶¶ 20-22.) Plaintiffs allege that Petschauer cut a five foot wide hole in the existing fence, subsequently expanded the hole, and later removed the fence without Plaintiffs’ permission. (Id., ¶¶ 23-24.) Plaintiffs also allege that Petschauer installed a Ring-branded security camera on the southerly wall of the garage; parked vehicles; walked through the Disputed Area and Subject Property; conducted exercise activity on the community driveway; physically attacked Plaintiffs on the Subject Property, and allowed her dogs to utilize the Disputed Area and the Subject Property in violation of the Community Driveway Agreement. (Id., ¶¶ 25-30.)

Petschauer

argues that Plaintiffs' declaratory relief and quiet title causes of action are identical seeking adjudication of the same issue and requesting the same relief regarding the Disputed Area which is not an appropriate use for a declaratory relief claim. (MSA, at pp. 8-10.)

The court finds that Petschauer carries her initial burden of demonstrating that the declaratory relief claim is not appropriate. Plaintiffs brought their declaratory relief claim alleging that "[a]n actual controversy has arisen and now exists between the parties as to Plaintiffs' claim of Quiet Title." (FAC, ¶ 32.) The FAC demonstrates that Plaintiffs assert the declaratory cause of action based on the same allegations asserted for quiet title merely seeking a declaration as to that claim. The first cause of action appears unnecessary and superfluous as issues sought to be determined are already fully encompassed by the sixth cause of action for quiet title. The burden shifts to Plaintiffs.

In opposition, Plaintiffs argue that the declaratory relief claim remains proper as it is routinely pleaded alongside quiet title claims where an ongoing controversy exists. (Opp., at p. 6.)

The court finds that Plaintiffs' argument is unpersuasive as it appears that there is no dispute that the declaratory relief cause of action is simply duplicative of the quiet title action. (Undisputed Material Facts ("UMF"), Nos. 1-10.) Although Plaintiffs may plead alternative claims for relief, the court is not obligated to consider a claim that is unnecessary and superfluous. (Code Civ. Proc., § 1061.)

Accordingly, summary adjudication is granted as to the first issue.

C.

Issue No. 2: Nuisance (Third Cause of Action)

To establish an action for private nuisance, (1) "the plaintiff must prove an interference with his use and enjoyment of his property"; (2) "the invasion of the plaintiff's interest in the use and enjoyment of the land must be substantial, that is, that it

causes the plaintiff to suffer substantial actual damage”;

(3) “the interference with the protected interest must not only be substantial, but it must also be unreasonable, i.e., it must be of such a nature, duration, or amount as to constitute unreasonable interference with the use and enjoyment of the land.” (Mendez v. Rancho Valencia Resort Partners, LLC (2016) 3 Cal.App.5th 248, 262-263 [citations, italics, brackets, and quotation marks omitted].)

Petschauer argues

that the nuisance cause of action fails as to Xiaoyu because Xiaoyu has not experienced any interference with the use or enjoyment of his real property. (MSA, at pp. 10-11.) In support, Petschauer provides evidence of Xiaoyu’s deposition testimony establishing that Xiaoyu is a full-time resident of Shanghai, China admitting that Xiaoyu has not being physically present at the Subject Property within the last seven years nor communicated with Petschauer. (UMF, Nos. 14-16.) The evidence also demonstrates that Xiaoyu was unaware of any alleged trespass or non-possessory intrusion or nuisance by Petschauer as alleged in the FAC. (Id., ¶ 17.)

The court finds

that Petschauer met the initial burden of demonstrating that Xiaoyu has not experienced any interference with his use and enjoyment of the Subject Property as Xiaoyu did not reside in Subject Property and has no knowledge of the alleged conduct. The burden shift to Plaintiffs.

In opposition,

Plaintiffs fail to provide any disputing evidence. A private nuisance claim requires proof that the defendant’s conduct unreasonably interfered with the plaintiff’s use and enjoyment of property. (San Diego Gas & Electric Co. v. Superior Court (1996) 13 Cal.4th 893, 937-938.) Without evidence that there was an interference with the use and enjoyment of the Subject Property causing Xiaoyu to suffer substantial actual damage, the nuisance claim fails.

Accordingly, summary adjudication is granted as to the second issue.

D.

Issue No. 3: Invasion of Privacy (Fourth Cause

of Action)

“An actionable claim [for invasion of privacy] requires three essential elements: (1) the claimant must possess a legally protected privacy interest; (2) the claimant's expectation of privacy must be objectively reasonable; and (3) the invasion of privacy complained of must be serious in both its nature and scope.” (County of Los Angeles v. Los Angeles County Employee Relations Commission (2013) 56 Cal.4th 905, 926 [citations omitted].) “An otherwise actionable invasion of privacy may be legally justified if it substantively furthers one or more legitimate competing interests. Conversely, the invasion may be unjustified if the claimant can point to ‘feasible and effective alternatives’ with ‘a lesser impact on privacy interests.’” (Ibid.)

Petschauer argues

that the invasion of privacy claim fails as to Xiaoyu as Plaintiffs cannot establish that there is a serious invasion of privacy because Xiaoyu has not been physically present at the Subject Property within the last seven years where the Ring camera allegedly records activity and invades his privacy. (MSA, at pp. 11-12.)

The court finds

that Petschauer met its initial burden of demonstrating that Xiaoyu has not suffered the injury or damages necessary to establish a cause of action for invasion of privacy as Xiaoyu does not reside in Subject Property. (UMF, Nos. 23-32.) The burden shifts to Plaintiffs.

In opposition,

Plaintiffs argue that triable issues exist regarding whether the Ring camera and its operations directed towards the Subject Property constitute an actionable interference with Xiaoyu's property. (Opp., at pp. 7-8.)

The court again

finds such arguments unpersuasive as Plaintiffs fail to provide any disputing evidence or any relevant authority to indicate that the operation of the Ring camera may constitute an invasion of privacy when Xiaoyu was not present in the Subject Property.

Accordingly, summary adjudication is granted as to the third issue.

E.

Issue No. 4: Injunctive Relief (Fifth Cause of Action)

Petschauer

argues that the injunctive relief claim fails as injunctive relief is a remedy and not a cause of action. (MSA, at pp. 12-13.)

The court

agrees. "Injunctive relief is a remedy, not a cause of action." (Guessous v. Chrome Hearts, LLC (2009) 179 Cal.App.4th 1177, 1187; Camp v. Board of Supervisors (1981) 123 Cal.App.3d 334, 356 ["injunctive relief is a remedy and not, in itself, a cause of action, and a cause of action must exist before injunctive relief can be granted."].) However, the court notes that Plaintiffs may still seek injunctive relief as part of the remaining causes of action.

Accordingly, summary adjudication is granted as to the fourth issue.

IV.

CONCLUSION

Defendant/Cross-Complainant Dawn M. Petschauer's Motion for Summary Adjudication is GRANTED.

[1] The

court notes that the only remaining Plaintiff is Xiaoyu. As such, the adjudication motion will only be considered as to Xiaoyu.